U.S. DEPARTMENT OF AGRICULTURE
WASHINGTON, D.C. 20250

DEPARTMENTAL REGULATION	NUMBER: DR 1020-006
SUBJECT: Public Access to Scholarly Publications and Digital Scientific Research Data	DATE: April 7, 2026
OPI: Office of the Chief Scientist	EXPIRATION DATE: April 7, 2031

Section | Page

1. Purpose 1
2. Scope 2
3. Special Instructions/Cancellations 3
4. Background 5
5. Policy 7
6. Roles and Responsibilities 12
7. Policy Exceptions 16
8. Inquiries 17

Appendix A – Acronyms and Abbreviations A-1
Appendix B – Definitions B-1
Appendix C – Authorities and References C-1

1. PURPOSE

a. This Departmental Regulation (DR) establishes the United States Department of Agriculture (USDA) policy for public access to scholarly publications and digital scientific research data assets. The USDA will make all peer-reviewed, scholarly publications and digital scientific research data assets arising from unclassified scientific research supported wholly or in part by the USDA accessible to the public, to the extent practicable and in keeping with enhanced research security to protect our agricultural research enterprise from foreign influence.

b. Publicly accessible scientific research products contribute to opportunities for collaboration, innovation, and scientific progress. Public access to USDA-supported scholarly publications and digital scientific research data assets helps maintain the integrity, credibility, and transparency of the Department's research findings and science-based public policymaking. This DR provides a policy for Departmental leadership and employees to ensure that scholarly publications and digital scientific research data assets are preserved, accessible by default, and citable.

2. SCOPE

a. This policy applies to:

(1) All USDA Mission Areas, agencies, and staff offices;

(2) All USDA employees who engage in scientific research during official duties, where employee has the meaning given that term in 5 United States Code (U.S.C.) 2105;

(3) Former USDA employees who engaged in scientific research during official duties; and

(4) Awardees, contractors, and individuals from non-USDA organizations who are engaged in USDA-supported scientific research. This includes but is not limited to states, localities, regulated parties, volunteer organizations, contractors, cooperative agreement holders, grantees, cooperating Federal Government agencies, intergovernmental organizations, and educational institutions.

b. This policy applies to all unclassified scientific research, including intramural research and extramural research, that is supported wholly or in part by the USDA, regardless of the USDA funding level or funding mechanism. This includes scientific research that is supported by:

(1) Any direct funding from a USDA grant or cooperative agreement active in Fiscal Year 2023 or beyond;

(2) Any direct funding from a USDA contract signed on or after October 1, 2022; or

(3) Any direct funding or arrangement, including in-kind support, from any USDA intramural research on or after October 1, 2022.

c. Any express requirements will be set forth in individual agreements, contracts, statements of work, memoranda of understanding, terms and conditions, or established via issuance of a separate rule or other Departmental policy.

d. This policy governs access to the results of USDA-funded research approved for public release; it does not replace applicable requirements and restrictions on research awards, research conduct, or publication approvals.

3. SPECIAL INSTRUCTIONS/CANCELLATIONS

a. This regulation supersedes DR 1020-006, *Public Access to Scholarly Publications and Digital Scientific Research Data*, dated July 20, 2022.

b. Relative to the previously issued version of DR 1020-006, this revision:

(1) Removes the optional 12-month embargo period for accepted manuscripts. On or after April 7, 2026, accepted manuscripts must be submitted as soon as possible after acceptance, and no later than the date on which the publisher makes the article available online or publishes the book chapter;

(2) Removes the optional 12-month embargo period for digital scientific research data assets. On or after April 7, 2026, digital scientific research data assets must be made publicly accessible on or before the date the associated publication is published online, or at the end of the performance or funding period, whichever comes first;

(3) Removes the optional 12-month embargo period for making a standardized metadata catalog entry accessible on the *Ag Data Commons*. On or after April 7, 2026, a standardized metadata catalog entry for data assets covered by this policy must be submitted to the *Ag Data Commons* no later than the date of publication of a data asset by a repository;

(4) Changes the term "final peer-reviewed accepted manuscript" to "accepted manuscript" to be consistent with standard terminology used by other agencies and industry;

(5) Expands public access requirements to now apply to book chapters;

(6) Changes the term "data management plans" to "data management and sharing plans" to align with terminology used by other federal agencies;

(7) Reorganizes Section 5 to compile all digital persistent identifier requirements into a single subsection;

(8) Adds digital persistent identifier requirements for peer-reviewed book chapters, preprints, and USDA-published scientific reports;

(9) Updates list of associated scientific research products for which authors are encouraged to obtain digital persistent identifiers to include extension publications;

(10) Adds requirement for researchers that in the profile for their digital persistent identifier (e.g., ORCID profile), works subject to this policy must be visibly listed for public review;

(11) Adds reference to data collected about Tribal nations' citizens, lands, and resources that are not authorized by Tribal nations to be made publicly available to the list of digital scientific research data assets exempt from public access requirements;

(12) Adds requirements for custom-developed code assets in response to the 2024 *Source code Harmonization And Reuse in Information Technology Act* (Public Law (P.L.) 118-187), also known as the *SHARE IT Act*;

(13) Adds reference to the following:

(a) Executive Order (EO) 13960*, Promoting the Use of Trustworthy Artificial Intelligence in the Federal Government* (2020);

(b) National Security Presidential Memorandum 33 (NSPM-33), *Presidential Memorandum on United States Government-Supported Research and Development National Security Policy* (2021);

(c) EO 14117, *Preventing Access to Americans' Bulk Sensitive Personal Data and United States Government-Related Data by Countries of Concern* (2024);

(d) *Protecting Americans' Data from Foreign Adversaries Act* (P.L. 118-50; 2024);

(e) 28 Code of Federal Regulations (CFR) Part 202, *Preventing Access to U.S. Sensitive Personal Data and Government-Related Data by Countries of Concern or Covered Persons* (2025);

(f) EO 14292, *Improving the Safety and Security of Biological Research* (2025);

(g) Office of Science and Technology Policy (OSTP) memorandum, *Agency Guidance for Implementing Gold Standard Science in the Conduct & Management of Scientific Activities* (2025);

(h) EO 14303, *Restoring Gold Standard Science* (2025); and

(i) EO 14363, *Launching the Genesis Mission* (2025).

(14) Removes reference to the revoked Presidential Memorandum of January 27, 2021, *Restoring Trust in Government Through Scientific Integrity and Evidence-Based Policymaking*;

(15) Clarifies in Section 2 the meaning of employee and adds the word "individuals" to those in scope of this policy at non-USDA organizations who are engaged in USDA-supported scientific research;

(16) Adds statement to Section 2 to indicate that this DR does not replace other restrictions on research awards or activity;

(17) Updates USDA Agency Administrators' and Staff Office Directors' roles and responsibilities to include providing guidance and training to agency employees who are covered by the scope of this DR, including in all applicable notices of funding reference to this DR along with relevant related requirements to be addressed in applications, and supporting accessible data-sharing platforms, and ensuring rigorous public release processes;

(18) Adds information about using the waiver process for scholarly publications in journals that do not allow authors to meet the requirements of this policy;

(19) Adds definitions of custom source code, preprint, scientific reports, and source code; and

(20) Updates definitions of data management and sharing plan, digital persistent identifier, final published article, scholarly publication, scientific research, Tribal nation, and version of record.

c. All Mission Areas, agencies, and staff offices will align their policies and procedures with this DR within 12 months of the publication date.

d. This policy will remain in effect until it is superseded or expires.

4. BACKGROUND

a. The White House OSTP directed Federal agencies that fund research to develop plans to make the results of federally funded unclassified research that are published in peer-reviewed publications and associated digitally formatted scientific data publicly accessible (*Increasing Access to the Results of Federally Funded Scientific Research* (2013). The objectives laid out in the OSTP memorandum was developed with input from the National Science and Technology Council and public consultation in compliance with the *America COMPETES Reauthorization Act of 2010* (P.L. 111-358).

b. The USDA Science Council established governing policies that all peer-reviewed scholarly publications (*USDA Public Access Policy for Scholarly Publications*) and digital scientific research data assets (*USDA Public Access Policy for Digital Scientific Research Data*) arising from unclassified scientific research and programs supported wholly or in part by the USDA be made publicly accessible to the extent practicable. This DR combines and promulgates the two USDA Science Council policies on public access, which are superseded by publication of this DR.

c. DR 1074-001, *Scientific Integrity,* documents the Department's policy to make scientific findings or conclusions considered or relied on in policy decisions publicly accessible online and in open formats, to the extent practicable, consistent with the *Memorandum on Transparency and Open Government* (2009), the *Freedom of Information Act* (FOIA; 1967), the *Administrative Procedure Act* (1946), and other applicable statutes, regulations or document-handling procedures and policies.

d. Title II of the *Foundations for Evidence-Based Policymaking Act of 2018* (P.L. 115-435), also known as the *OPEN Government Data Act*, requires that Federal agencies publish their information online as open data, using standardized, machine-readable formats. USDA considers digital scientific research data assets published by Federal agencies to be subject to Title II.

e. In alignment with Executive Order (EO) 13960, *Promoting the Use of Trustworthy Artificial Intelligence in the Federal Government* (2020), this policy ensures transparency of data and code associated with research involving AI.

f. In alignment with the principles outlined in National Security Presidential Memorandum 33 (NSPM-33; 2021), this directive recognizes the dual imperative of promoting open scientific collaboration and protecting the integrity of United States Government-supported research and development. NSPM-33 underscores the importance of securing federally funded research against foreign exploitation while preserving the transparency and accessibility that underpin American innovation.

g. In alignment with 28 CFR part 202, *Preventing Access to U.S. Sensitive Personal Data and Government-Related Data by Countries of Concern or Covered Persons*, EO 14117, *Preventing Access to Americans' Bulk Sensitive Personal Data and United States Government-Related Data by Countries of Concern* (2024), and the *Protecting Americans' Data from Foreign Adversaries Act* (P.L. 118-50; 2024), this directive recognizes the lack of data reciprocity and national security risks posed by data repositories hosted, funded, or controlled by foreign countries of concern that must be balanced with public access to digital scientific research data.

h. The 2024 *Source code Harmonization And Reuse in Information Technology Act* (P.L. 118-187), also known as the *SHARE IT Act* (2024), requires that custom-developed code—meaning source code created under a federal contract, fully funded by the government, or created by federal employees as part of their official work—along with key technical elements like architecture and metadata, must be:

   (1) Owned by the agency;

   (2) Stored in a public or private repository; and

   (3) Accessible to federal staff following specific procedures.

i. In alignment with EO 14292, *Improving the Safety and Security of Biological Research* (2025), this policy supports the federal government's commitment to ensuring that publicly funded research does not compromise national security or public health. EO

14292 directs agencies to strengthen oversight of biological research, particularly gain-of-function studies, and to halt funding for high-risk projects conducted in foreign countries of concern. While this policy promotes transparency and public access to USDA-supported scientific outputs, it does so in a manner that is fully compatible with EO 14292's safeguards.

j. The White House OSTP directed federal agencies in accordance with EO 14303, *Restoring Gold Standard Science* (2025), to implement nine tenets of Gold Standard Science (*Agency Guidance for Implementation Gold Standard Science in the Conduct & Management of Scientific Activities* (2025)). The OSTP guidance emphasizes the importance of "*open, accessible, and comprehensive sharing of all components of the research process—methodologies, data, analytical tools, and findings—to enable stringent scrutiny, validation, and reuse by the scientific community and the public.*" The Department issued SM-1078-013 *(Responding to and Implementing Gold Standard Science at the U.S. Department of Agriculture*) to direct employees accordingly.

k. USDA public access repositories can support Executive Order 14363, *Launching the Genesis Mission* (2025).

5. POLICY

a. It is USDA policy to provide public access to all scholarly publications and digital scientific research data assets that arise from USDA-supported scientific research meeting the criteria in Section 2b, to the extent practicable. USDA also encourages and, in many cases, requires the sharing of custom-developed code as described in Section 5d. These requirements do not affect the assignment of copyright.

b. USDA-supported scholarly publications shall not be published in journals using predatory practices or whose publisher has editorial offices managed, owned, controlled, or physically or virtually located in, or operated out of, a foreign country of concern.

c. Accepted manuscripts must be made freely accessible to the public through the USDA public access archive system (*PubAg*, hosted by the National Agricultural Library (NAL)). A final published article may be submitted to *PubAg* in lieu of the accepted manuscript, provided the author has the right to submit the published version (e.g., open access articles). Scholarly publications should follow USDA's *Publications Review and Clearance Policy* (DR 1410-001) by acknowledging and disclosing the public funding of the published work by USDA along with any other sources of funding.

(1) Public access through *PubAg* must be established within 12 months of the date on which the publisher makes the final published article available online if published from October 1, 2022 to April 6, 2026.

(2) On or after April 7, 2026, accepted manuscripts must be submitted to *PubAg* as soon as possible after acceptance, and no later than the date on which the publisher

makes the final published article available online or publishes the book chapter, so that USDA can provide public access without embargo.

d. For digital scientific research data assets that meet the criteria in Section 2b:

(1) All scientific research expected to produce digital scientific research data assets must be accompanied by a reviewed and approved data management and sharing plan consistent with agency or staff office policies and procedures if they exist, or Departmental guidance if they do not. The data management and sharing plan must describe how digital scientific research data assets applicable under Section 5c(2) will be made publicly accessible and indicate any categories of digital scientific research data assets that are exempt from public access requirements.

(2) Digital scientific research data assets should be made publicly accessible to the extent practicable. Computational models, such as artificial intelligence models, and computational model-related content (including but not limited to parameters, inputs, outputs, and other derived output products) are covered in Section 5d. Digital scientific research data assets that are not required to be made publicly accessible under this DR include:

(a) Data from secondary sources (i.e., data that are not collected by or modified through USDA-supported research;

(b) Data that would not be necessary for validation of scientific research findings (i.e., trivial data);

(c) Data assets that include personally identifiable information or other information that could enable re-identification of individuals or businesses, alone or in combination with other publicly available information;

(d) Proprietary data assets;

(e) Data assets related to protecting critical infrastructure;

(f) Data assets related to the physical location of threatened or endangered species or sensitive archaeological sites;

(g) Data assets for which release would be inconsistent with U.S. national, homeland, or economic security or would have significant negative impact on intellectual property rights, innovation, and U.S. competitiveness, e.g. gain-of-function research;

(h) Data assets for which public access is inconsistent with the agency or staff office mission (e.g., documents designated as Controlled Unclassified Information (CUI));

(i) Other data assets whose release is limited by law, regulation, contract, agreement, national security requirements, or policy (e.g., classified data or dual-use research data);

(j) Data covered by a FOIA exemption; and

(k) Data that would violate Tribal nations' data sovereignty including data collected about their citizens, lands, and resources that is not authorized by Tribal nations to be made publicly available, in accordance with any applicable Tribal codes or resolutions.

(3) Digital scientific research data assets covered by public access requirements must be published in a machine-readable format by a data repository that is recognized by reputable registries.

(4) Data repositories at a minimum must provide:

(a) Public access for search, retrieval, and analysis;

(b) A digital persistent identifier, such as a DOI;

(c) Long-term preservation of the data asset; and

(d) The above capabilities while not being hosted, funded, or controlled by a foreign country of concern or a foreign government-connected entity from a foreign country of concern.

(5) Digital scientific research data assets covered by public access requirements must be made publicly accessible as soon as possible. The timeline for making all digital scientific research data assets publicly accessible must be described in the approved data management and sharing plan. Public access to digital scientific research data assets must be achieved during this timeframe unless a waiver or extension has been obtained following the procedure described in Section 7b.

(a) From October 1, 2022 to April 6, 2026, public access to digital scientific research data assets covered by this policy must be established within 12 months of the date on which the publisher makes the associated article available online, or at the end of the performance or funding period, whichever comes first.

(b) On or after April 7, 2026, public access to digital scientific research data assets covered by this policy must be established by the date on which the publisher makes the associated article available online or publishes the book chapter, or at the end of the performance or funding period, whichever comes first.

(6) A standardized metadata catalog entry (e.g., using a Project Open Data Metadata Schema) that is machine-readable, references the USDA funding source(s), and describes the digital scientific research data asset must be submitted to the publicly available USDA scientific data catalog system (*Ag Data Commons*, hosted by the NAL). The metadata catalog entry must include the digital persistent identifiers of the data authors, the published digital scientific research data asset, and any associated research products described in Section 5e(6) where available.

(a) From October 1, 2022 to April 6, 2026, a standardized metadata catalog entry for data assets covered by this policy must be accessible within 12 months following the publication of a data asset by a repository.

(b) On or after April 7, 2026, a standardized metadata catalog entry for data assets covered by this policy must be submitted to the *Ag Data Commons* no later than the date of publication of a data asset by a repository.

e. For custom-developed code assets that meet the criteria in Section 2 and were developed or revised after June 21, 2025, or initially created under contracts awarded after June 21, 2025, that are or will be deployed into a USDA information system:

(1) All custom-developed code assets and other key technical components of the code (including documentation, data models, schemas, metadata, and architecture designs) must be stored or have an updated copy in a USDA-managed source code repository and made accessible at a minimum to federal employees, though USDA encourages sharing the source code publicly when practicable. Shared code within scope of this policy will not bear any requirement or responsibility for on-going support, updates, patching, or obligation to provide such to any entity that accesses, uses, or consumes the code shared within this policy.

(2) All scientific research expected to produce custom-developed code assets should include the plan for those assets in the reviewed and approved data management and sharing plan described in Section 5c(1). The data management and sharing plan must describe how custom-developed code assets applicable under Section 5d(3) will be made accessible at minimum to federal employees and indicate any categories of custom-developed code assets that are exempt from sharing requirements.

(3) Custom-developed code assets should be made accessible at minimum to federal employees to the extent practicable unless they meet any of the following exemption criteria:

(a) Custom-developed code assets that are outside the scope of this policy include:

Source code that is solely exploratory or disposable in nature, including source code written by a developer experimenting with a new language or library; or

1 Commercial computer software, commercial off-the-shelf software, or configuration scripts for such software.

(b) Custom-developed code assets that are not required to be made accessible to federal employees under this DR include:

1 When sharing or discovery of source code is restricted by Federal law or regulation;

2 When sharing or discovery of source code would create an identifiable risk to privacy, confidentiality, integrity, or availability of USDA data or information systems; and

3 Source code covered by a Freedom of Information Act exemption.

(4) The timeline for making all custom-developed code assets accessible to federal employees must be described in the approved data management and sharing plan. Sharing of custom-developed code assets must be established by the date on which the publisher makes the associated article available online or publishes the book chapter, or at the end of the performance or funding period.

(5) Metadata must be published for all custom-developed source code asset repositories as required by relevant OMB or USDA guidance. If made publicly accessible, metadata must adhere to Section 5c(5) metadata requirements.

f. Digital persistent identifiers, such as DOIs and ORCID iDs, are required as follows:

(1) Digital persistent identifiers are required for final published articles, i.e., version of record.

(2) Digital persistent identifiers are additionally required for the following scholarly publications and related products if published, even if not required for submission to *PubAg*, on or after April 7, 2026:

(a) Peer-reviewed book chapters;

(b) Preprints; and

(c) USDA-published scientific reports.

(3) All authors (subject to this policy) of scholarly publications must have individual digital persistent identifiers, such as the Open Researcher and Contributor ID (ORCID iD), that are linked to the scholarly publications in scope for this policy.

(4) All authors of digital scientific research data assets (data authors) that meet the criteria in Section 5c(2) must have individual digital persistent identifiers (e.g., ORCID iD) that are linked to their data assets and other research products.

(5) Digital scientific research data assets covered by this policy must also receive a digital persistent identifier, such as a DOI.

(6) Authors of scholarly publications and digital scientific research data assets are also encouraged to obtain digital persistent identifiers for other associated scientific research products if these products are not subject to statutory restrictions and would provide information that would help future users of the scholarly publication. Examples of optional but encouraged associated research products include:

(a) Software (including code);

(b) Methods/protocols;

(c) Curricular materials;

(d) Extension publications; and

(e) Multi-media materials.

(7) Scholarly publications, digital scientific research data assets, and custom-developed code should be linked with digital persistent identifiers when possible. For example, the DOI for digital data assets should be included in the data availability statement for scholarly publications.

(8) In the author profile for their digital persistent identifier (e.g., ORCID profile), works subject to this policy must be visibly listed for public review.

6. ROLES AND RESPONSIBILITIES

a. The Secretary of Agriculture will assign overall executive responsibility for establishing, managing, and implementing public access to scholarly publications and digital scientific research data assets to the USDA Chief Scientist.

b. The USDA Chief Scientist will oversee all aspects of this DR and have oversight authority for USDA proceedings to review and implement the policy. Specific responsibilities include:

(1) Assuming Departmentwide authority, control, and management of this policy;

(2) Consulting with the USDA Science Council on the implementation of this policy;

(3) Coordinating a sustainable funding strategy to implement this policy;

(4) Coordinating the implementation of this policy by agencies and staff offices, including coordination of the monitoring, measurement, auditing, reporting, and enforcement of agency and office compliance with policy provisions;

(5) Liaising with other Federal agencies on public access policies and implementation;

(6) Evaluating this policy and revising as necessary. Input may be sought from the broad community of stakeholders who include, but are not limited to, other federal science agencies, academia, scientific societies, the private sector, and the public;

(7) Monitoring and coordinating the consistency of policy implementation with the Department's uniform administrative requirements, cost principles, and audit requirements for Federal awards (Title 2 CFR Part 400, *Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards*); and

(8) Establishing a process to review and approve requests for waivers and extensions to public access requirements for scholarly publications and digital research data assets.

c. The USDA Chief Information Officer will:

(1) Oversee Departmental investment in data management information technology infrastructure necessary for implementation of this policy; and

(2) Assume responsibility for the implementation of cybersecurity and privacy controls as they apply to the implementation of this directive and covered digital scientific research data assets.

d. The USDA Chief Data Officer will:

(1) Provide recommendations on the alignment of this policy with other Departmental data policies and guidance;

(2) Ensure Departmental open data initiative activities are coordinated with the implementation of this policy;

(3) Review the impact of Departmental infrastructure on the accessibility of digital scientific research data assets and coordinate solutions that ensure appropriate public access;

(4) Promote a culture of lifecycle data management and data management best practices; and

(5) Coordinate standardization of data and metadata formats, sharing, and publication across digital scientific research data assets.

e. USDA Agency Administrators and Staff Office Directors will oversee the implementation of this DR through the establishment of appropriate policies and procedures within their units. Specific responsibilities, which may be delegated as appropriate, include:

(1) Ensuring that their employees and the institutions and awardees receiving applicable grants, contracts, and agreements are aware of and comply with this policy and related policies;

(2) Providing agency employees, who are covered by the scope of this DR, with any necessary guidance and training to understand and fulfill their responsibilities under this DR and any agency-specific guidance on public access to research results;

(3) Including in all applicable notices of funding reference to this DR along with relevant related requirements to be addressed in applications;

(4) Including the requirements of this policy as terms and conditions of awards for applicable grants, contracts, and agreements established after the effective date of this policy and updating active grants, contracts, and agreements to include the requirements of this policy to the extent practicable. This should include a statement that scholarly publications and digital scientific research data assets authored solely by USDA employees as part of their official duties are works of the United States Government and are therefore not subject to copyright protection in Title 17 of the United States Code (U.S.C.) Section 105, *Subject matter of copyright: United States Government works*, as well as acknowledge and disclose the public funding of the published work by USDA;

(5) Ensuring that public access implementation by agency employees does not provide material or non-material benefit through the provision of funded or unfunded work to any foreign person or entity or any U.S. citizen or entity subject to foreign ownership, control, or influence by a country of concern or other foreign adversary, e.g., by maintaining rigorous public release approval processes;

(6) Developing practical funding mechanisms to ensure the successful implementation of this policy;

(7) Ensuring that reporting systems accommodate reporting on published scholarly publications and digital scientific research data assets;

(8) Ensuring that research publications and digital scientific research data assets are linked using digital persistent identifiers and that authors obtain and use individual digital persistent identifiers;

(9) Ensuring that a policy or procedure exists for reviewing and approving data management and sharing plans, and that the agency or staff office has a clearly defined performance or funding period relevant to the public access timeline requirement described in Section 5c(4);

(10) Reviewing requests for waivers and extensions to public access requirements, as described in Section 7, and forwarding approved waiver requests to the Office of the Chief Scientist;

(11) Promoting the accessibility and use of published digital scientific research data assets by agency and staff office employees, the public, and contractors; and

(12) Supporting accessible data-sharing platforms.

f. The NAL Director will:

(1) Oversee the maintenance of *PubAg*, which serves as the USDA public access archive system for scholarly publications;

(2) Oversee the maintenance of the *Ag Data Commons*, which serves primarily as a catalog for metadata entries of published digital scientific research data assets and secondarily as a data repository for a limited number of digital scientific research data assets; and

(3) Oversee the development and maintenance of additional resources to support the implementation of this policy.

g. Individuals covered by this policy (Section 2a) who are authors of scholarly publications will:

(1) Work with the journal publisher before any publication rights are transferred to ensure that all conditions of this policy can be met;

(2) Avoid publishing in journals with predatory practices or whose publishers have editorial offices managed, owned, controlled, or physically or virtually located in, or operated out of, a foreign country of concern;

(3) Not sign any agreements with journal publishers that do not allow the author to comply with the policy described in this DR;

(4) Ensure that accepted manuscripts or final published articles are submitted to *PubAg*;

(5) Ensure that their individual digital persistent identifier is associated with the publication and that their affiliation and acknowledgment information accurately reflect their relationship with the USDA;

(6) Ensure that the final published article is assigned a digital persistent identifier (e.g., DOI) by the publisher, or by NAL when not provided by the publisher; OR

(7) Request a waiver or extension if needed as described in Section 7.

h. Individuals covered by this policy (Section 2a) who are authors of digital scientific research data assets (Section 5c) will:

(1) Prepare and follow data management and sharing plans consistent with agency or staff office policies and procedures if they exist, or Departmental guidance if they do not;

(2) Ensure that digital scientific research data assets that are required to be made publicly accessible are published on a data repository that meets the requirements of this policy, following a timeline described in the associated data management and sharing plan and meeting requirements described in Section 5c(4);

(3) Work with the data publisher to ensure that all conditions of this policy are met;

(4) Ensure that a metadata catalog entry is submitted to the *Ag Data Commons* and work with relevant USDA metadata reviewers (e.g., support staff associated with the *Ag Data Commons*) to ensure that all conditions of this policy are met;

(5) Not sign any agreements with journal publishers or data publishers that do not allow the author to comply with the policy described in this DR;

(6) Ensure that their individual digital persistent identifier is associated with published digital scientific research data assets and that their affiliation and acknowledgment information accurately reflect their relationship with USDA;

(7) Ensure that research publications associated with digital scientific research data assets covered by this policy receive digital persistent identifiers; and

(8) Request a waiver for digital scientific research data assets they feel should not be made public but that are covered by the public access requirements of this policy, or for an extension of the timeline for making data publicly accessible, following the process described in Section 7.

7. POLICY EXCEPTIONS

It is Departmental policy to make accessible to the public all peer-reviewed, scholarly publications and digital scientific research data assets arising from unclassified scientific research supported wholly or in part by the USDA, to the extent practicable. However, circumstances may exist that would make adherence to the policy in this DR impractical or detrimental to the mission of the Department.

a. Data authors of digital scientific research data assets that are covered by public access requirements (Section 5c(2)) may submit a waiver request for data assets that they feel should not be made publicly accessible. Data authors may begin the waiver request process at any point, including after the project data management and sharing plan is reviewed and approved, and up until the required time of data publication (Section 5c(4)). The waiver request must articulate and justify the policy deviation for any digital scientific research data asset collected or generated during a research project, including data assets listed in the approved project data management and sharing plan and unexpected data assets collected or generated during the project that were not included in the data management and sharing plan.

b. Data authors do not need to obtain a waiver for digital scientific research data assets that are exempt from public access requirements, as described in Section 5c(2). Instead, researchers must state in the associated data management and sharing plan the applicable exclusion from Section 5c(2) and explain how the proposed digital scientific research data assets meet the exclusion.

c. Data authors of digital scientific research data assets that are covered by the public access requirements (Section 5c(2)) may submit a request for an extension to the timeline for making digital scientific research data assets publicly accessible (Section 5c(4)). The request should articulate the amount of additional time that will be required before a data asset can be published and provide a justification for the extension.

d. Authors of scholarly publications may request a waiver to publish in journals that do not permit them to meet the requirements of this DR. Authors should request a waiver prior to initial submission to the journal. The waiver request must articulate and justify the policy deviation.

e. Agencies and staff offices should process and review initial waiver or extension requests and forward approved requests to the USDA Office of the Chief Scientist for final approval.

8. INQUIRIES

Questions about this DR should be directed to the Office of the Chief Scientist at OCSPolicy@usda.gov.

-END-

APPENDIX A

ACRONYMS AND ABBREVIATIONS

CFR	Code of Federal Regulations
CUI	Controlled Unclassified Information
DOI	Digital Object Identifier
DR	Departmental Regulation
EO	Executive Order
FOIA	Freedom of Information Act
NAL	National Agricultural Library
NSPM	National Security Presidential Memorandum
OMB	Office of Management and Budget
ORCID iD	Open Researcher and Contributor Identifier
OSTP	Office of Science and Technology Policy of the Executive Office of the President
P.L.	Public Law
U.S.C.	United States Code
USDA	United States Department of Agriculture

APPENDIX B

DEFINITIONS

Accepted Manuscript. Also known as the author accepted manuscript or final peer-reviewed accepted manuscript. An author's final version of a publisher-accepted, peer-reviewed article or book chapter that includes all modifications resulting from the peer-review process. It contains the same content as the final published article or book chapter but does not include the publisher's copyediting, stylistic, or formatting edits that will constitute the final "version of record" that appears in a peer-reviewed, scholarly journal, or peer-reviewed conference proceedings.

Ag Data Commons. The USDA scientific research data catalog and repository maintained by the NAL.

Arrangement. Term used to describe any and all forms of legally binding documents, whether governed by domestic, foreign, or international law, and non-legally binding documents, signed by representatives of the USDA, as in Section 2b(3).

Computational Model. The use of mathematics, statistics, physics, and computer science to study the mechanism and behavior of complex systems in many domains by computer simulation. A computational model contains numerous variables that characterize the system being studied. Simulation is done by adjusting these variables and observing how the changes affect the outcomes predicted by the model. Computational models are often implemented via custom source code.

Controlled Unclassified Information (CUI). Information that requires safeguarding or dissemination controls pursuant to and consistent with applicable law, regulations, and governmentwide policies but is not classified under EO 13526, *Classified National Security Information*, or the *Atomic Energy Act*, 42 U.S.C. § 2011, *et seq*., as amended (Source: EO 13556, *Controlled Unclassified Information*). CUI encompasses and replaces previous sensitive information labels (e.g., For Official Use Only).

Custom Source Code. Source code that is produced in the performance of a contract with an agency or is otherwise exclusively funded by the Federal Government; or developed by a Federal employee as part of the official duties of the employee. It includes source code, or segregable portions of source code, for which the Federal Government could obtain unlimited rights under FAR Part 27 or any relevant supplemental acquisition regulations of an agency; and source code written for a software project, module, plugin, script, middleware, or application programming interface. It does not include source code that is solely exploratory or disposable in nature, including source code written by a developer experimenting with a new language or library; or commercial computer software, commercial off-the-shelf software, or configuration scripts for such software. (*SHARE IT Act*)

Data. Observations that are measured, collected, and recorded; they can be quantitative or qualitative in nature. Singular is datum, although the word rarely appears in science discussions.

Data Asset. Also commonly referred to as a dataset. A collection of factual information and observations generally collected for analysis and interpretation to answer research questions. An asset represents the outcome of Federally funded work and has potential future value.

Data Author. An individual who is credited as responsible for a digital scientific research data asset covered by this policy. While a data asset may have many authors, one data author should appear as the primary contact for a published digital scientific research data asset, as listed in the standardized metadata catalog entry for the data asset in the *Ag Data Commons*.

Data Management and Sharing Plan. A written plan for managing data as an asset throughout the scientific research life cycle, including information such as expected data types, data formats and standards, data storage and preservation of access, data sharing and public access, roles and responsibilities, and monitoring and reporting. A data management and sharing plan describes how research data assets will conform to this policy for preservation and public access or explains why this cannot be justified.

Data Publisher. An organization or entity that archives data, provides a digital persistent identifier, and makes the data accessible for use by others.

Data Repository. A place that holds data, makes data available to use, and organizes data in a logical manner. A data repository may also be defined as an appropriate, subject-specific location where researchers can submit their data. Data repositories may have specific requirements concerning subject or research domain; data re-use and access; file format and data structure; and the types of metadata that can be used.

Digital Object Identifier (DOI). Globally unique character string that references a physical, digital, or abstract object. A DOI provides an actionable, interoperable, persistent link to information about the object it references (United States Geological Survey, *Digital Object Identifiers* website).

Digital Persistent Identifier. A unique digital identifier that is long-lasting and unambiguously identifies a digital object (e.g., DOI) or an individual (e.g., ORCID iD).

Digital Scientific Research Data Asset. A digitally formatted data asset resulting from unclassified scientific research supported wholly or in part by the USDA. The digital recorded factual material commonly accepted in the scientific community as necessary to validate scientific research findings includes data used to support scholarly publications, but does not include laboratory notebooks, preliminary analyses, draft manuscripts, plans for future scientific research, peer review reports, communications with colleagues, or physical objects, such as laboratory specimens. Data assets arising from routine analysis in support of program operations are not considered digital scientific research data assets, even if they are related to intramural or extramural scientific research supported by the USDA.

Extramural Research. Research conducted by any research institution other than the Federal agency to which the funds supporting the research were appropriated. Research institutions conducting extramural research may include Federal research facilities (USDA, Departmental Guidebook (DG) 0100-002, *USDA Departmental Directives Definitions Glossary*).

Final Published Article. Sometimes referred to as the version of record. A publisher's authoritative copy of the article, including all modifications from the publishing peer-review process, copyediting, stylistic edits, and formatting changes.

Foreign Country of Concern. The term "foreign country of concern" means the People's Republic of China, the Democratic People's Republic of Korea, the Russian Federation, the Islamic Republic of Iran, or any other country determined to be a country of concern by the Department of State (42 U.S.C. § 19221).

Intramural Research. Research conducted by a Federal agency to which funds were appropriated for the purpose of conducting the research (USDA, Departmental Guidebook (DG) 0100-002, *USDA Departmental Directives Definitions Glossary*).

Machine-readable Data. Data in a format that can be easily processed by a computer without human intervention while ensuring no semantic meaning is lost.

Metadata. Information that describes the content, characteristics, format (e.g., numeric, date, text), and attributes of a data asset. The metadata for structured data objects describes the structure, data elements, interrelationships, definitions, and other characteristics of information, including its creation, disposition, access and handling controls, formats, content, quality (accuracy, completeness), and context, as well as related audit trails. For any particular datum, the metadata may describe how the datum is represented, ranges of acceptable values, its relationship to other data, and how it should be labeled. Metadata also may provide other relevant information, such as the responsible steward, associated laws and regulations, and access management policy.

Open Access Article. An article, made freely accessible at the time of publication without any embargo period, typically supported by open access fees or higher article processing charges paid by the author or their research institution to the publisher. Open access articles may appear in hybrid journals or completely open access journals.

ORCID iD (Open Researcher and Contributor ID). An alphanumeric code digital persistent identifier that uniquely identifies an individual scientist or researcher.

Peer Review. An assessment process widely used by scholarly journals to evaluate the quality of manuscripts submitted for publication. The process commonly includes reviews by subject experts who critique the methodology, assumptions, results, and interpretations underlying the manuscript. In concert with reviewers, the editor-in-chief decides whether to accept or reject the manuscript for publication or request further modifications.

Peer-reviewed Journal Article. An article published in a journal in which the manuscripts are sent by editors to scientific experts in the field of research to determine acceptance for publication.

Predatory practices. As applied to scholarly journals: lack of transparency in publishing, a peer-review process that is not clearly defined or performed, peer-review feedback to authors is minimal, publisher attempts to hide its actual location by using mail drops in countries other than the actual location of the publisher, author fees are hidden or unstated, or publisher sends author an unexpected or high bill prior to an article's publication.

Preprint. A manuscript posted by the author(s) on a preprint server or website. Authors post preprints for the purposes of sharing findings or information with the scientific community, getting early feedback on the article before the peer-review process, and accelerating discovery and scholarly communication. Preprint publications do not necessarily constitute scientific research findings, which require validation through the widely accepted peer-review process associated with academic journal publishing. Authors typically submit the manuscript to a peer-reviewed journal at the same time or after they post the preprint. The preprint typically remains available after a final version of the article is published in a peer-reviewed journal.

PubAg. The USDA public access archive system for scholarly publications maintained by the NAL.

Public Access. Access to information that is available to the public. Public access does not necessarily mean free for use, and restrictions for reuse or redistribution may apply.

Published Digital Scientific Research Data Asset. A digital scientific research data asset that has a digital persistent identifier associated with it that is expected to persist over time and therefore, is citable.

Researcher. Any USDA employee, contractor, awardee, or collaborator involved in the process of scientific research, including those responsible for data asset design, collection, analysis, or quality assurance to ensure data are fit for use.

Scholarly Publication. A peer-reviewed publication that disseminates scientific research findings and communicates insights, intended for an audience of researchers, scholars, or scientists. For the purposes of this DR, the term specifically applies to peer-reviewed journal articles and book chapters published by nongovernmental organizations.

Scientific Report. Reports of research progress or of special program results that are in the public interest.

Scientific Research. Systematic investigation, including development, testing, analysis, and evaluation, that involves the application of scientific methodologies and is designed to develop or contribute to generalizable knowledge. Scientific research activities include data collection, inventorying, monitoring, statistical analysis, surveying, observations, experimentation, study, research, analysis, integration, economic analysis, forecasting, predictive analytics, modeling, scientific assessment, and technology development that involve the application of scientific methodologies in a systematic manner. Research includes all basic, applied, and demonstration research in all fields of science, technology, engineering, and mathematics. This includes, but is not limited to, research in economics, education, linguistics, medicine, nutrition, psychology, natural sciences, social sciences, statistics, and research involving human subjects, animals, and in vitro and in silico techniques. Activities which meet this definition constitute research for purposes of this policy, whether or not they are conducted or supported under a program which is considered "research" for other purposes. For example, some demonstration and service programs may include research or scientific activities.

Source Code. A collection of computer commands written in a computer programming language that a computer can execute as a piece of software. (*SHARE IT Act*)

Tribal Nation. A governing body of a tribe, band, pueblo, community, village, or group of Native American Indians or Alaska Natives qualifies as an Indian tribal government upon determination by the Internal Revenue Service that the governing body exercises governmental functions. (26 CFR § 305.7701-1)

Version of Record. Sometimes referred to as the final published article. Final, authoritative version of a scholarly article published by a scholarly publisher and intended to reflect any corrections that occurred after original publication and to serve independent preservation and archival purposes.

APPENDIX C

AUTHORITIES AND REFERENCES

2 CFR part 400, USDA's implementation of 2 CFR part 200, *Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards*

28 CFR Part 202, *Preventing Access to U.S. Sensitive Personal Data and Government-Related Data by Countries of Concern or Covered Persons*

5 U.S.C. § 2105, *Employee*

5 U.S.C. § 552, *Freedom of Information Act*

5 U.S.C. Chapter 5, Subchapter II, *Administrative Procedure*

15 U.S.C. § 3710a, *Cooperative Research and Development Agreements Act*

17 U.S.C. § 105, *Subject Matter of Copyright: United States Government Works*

42 U.S.C. § 19221, *Strategy and report on the nation's economic security, science, research, and innovation to support the national security strategy*

44 U.S.C. § 3501, *The Paperwork Reduction Act*

44 U.S.C. Chapter 31, *The Federal Records Act*

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USDA, DR 3440-002, *Control and Protection of "Sensitive Security Information,"* January 30, 2003

USDA, DR 3440-003, *Controlled Unclassified Information (CUI) Program*, September 13, 2021

USDA, DR 3445-001, *Media Protection*, October 30, 2019

USDA, DR 3515-002, *Privacy Policy and Compliance for Personally Identifiable Information (PII)*, October 30, 2020

USDA, SM-1078-013, *Responding to and Implementing Gold Standard Science at the U.S. Department of Agriculture,* June 30, 2025

USDA, SM-1078-014, *America First Memorandum for USDA Arrangements and Research Security,* July 8, 2025

USDA, NAL, *Ag Data Commons* website

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